

HOUSE BILL No. 1224

DIGEST OF INTRODUCED BILL

Citations Affected: IC 16-18-2; IC 16-38-7.5; IC 35-52-16-33.5.

Synopsis: Indiana vaccination adverse event reporting system. Requires the Indiana department of health (department) to establish an Indiana vaccination adverse event reporting system (IVAERS) for reporting the occurrence of adverse events relating to childhood vaccines. Provides that IVAERS must enable a health care provider to report the occurrence of an adverse event experienced by a child residing in Indiana who is under the care of the health care provider. Requires the department to create a searchable Internet data base for publishing information reported through IVAERS. Provides that the health information of a particular individual is confidential. Specifies the requirements for releasing health information of a particular individual and who may receive the information. Provides that a person who knowingly, intentionally, or recklessly discloses confidential information received through IVAERS in violation of the statute commits a Class A misdemeanor. Requires the department to adopt certain rules concerning IVAERS. Makes an appropriation.

Effective: July 1, 2026.

Borders

January 5, 2026, read first time and referred to Committee on Public Health.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1224

A BILL FOR AN ACT to amend the Indiana Code concerning health and to make an appropriation.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 16-18-2-7.5 IS ADDED TO THE INDIANA CODE
2 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
3 1, 2026]: **Sec. 7.5. "Adverse event", for purposes of IC 16-38-7.5,**
4 **has the meaning set forth in IC 16-38-7.5-1.**

5 SECTION 2. IC 16-18-2-54.6 IS ADDED TO THE INDIANA
6 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
7 [EFFECTIVE JULY 1, 2026]: **Sec. 54.6. "Childhood vaccine", for**
8 **purposes of IC 16-38-7.5, has the meaning set forth in**
9 **IC 16-38-7.5-2.**

10 SECTION 3. IC 16-18-2-163, AS AMENDED BY
11 P.L.179-2022(ss), SECTION 4, IS AMENDED TO READ AS
12 FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 163. (a) Except as
13 provided in subsection (c), "health care provider", for purposes of
14 IC 16-21, **IC 16-38-7.5**, and IC 16-41, means any of the following:

15 (1) An individual, a partnership, a corporation, a professional
16 corporation, a facility, or an institution licensed or legally
17 authorized by this state to provide health care or professional



1 services as a licensed physician, a psychiatric hospital, a hospital,
 2 a health facility, an emergency ambulance service (IC 16-31-3),
 3 a dentist, a registered or licensed practical nurse, a midwife, an
 4 optometrist, a pharmacist, a podiatrist, a chiropractor, a physical
 5 therapist, a respiratory care practitioner, an occupational therapist,
 6 a psychologist, a paramedic, an emergency medical technician, an
 7 advanced emergency medical technician, an athletic trainer, or a
 8 person who is an officer, employee, or agent of the individual,
 9 partnership, corporation, professional corporation, facility, or
 10 institution acting in the course and scope of the person's
 11 employment.

12 (2) A college, university, or junior college that provides health
 13 care to a student, a faculty member, or an employee, and the
 14 governing board or a person who is an officer, employee, or agent
 15 of the college, university, or junior college acting in the course
 16 and scope of the person's employment.

17 (3) A blood bank, community mental health center, community
 18 intellectual disability center, community health center, or migrant
 19 health center.

20 (4) A home health agency (as defined in IC 16-27-1-2).

21 (5) A health maintenance organization (as defined in
 22 IC 27-13-1-19).

23 (6) A health care organization whose members, shareholders, or
 24 partners are health care providers under subdivision (1).

25 (7) A corporation, partnership, or professional corporation not
 26 otherwise qualified under this subsection that:

27 (A) provides health care as one (1) of the corporation's,
 28 partnership's, or professional corporation's functions;

29 (B) is organized or registered under state law; and

30 (C) is determined to be eligible for coverage as a health care
 31 provider under IC 34-18 for the corporation's, partnership's, or
 32 professional corporation's health care function.

33 Coverage for a health care provider qualified under this subdivision is
 34 limited to the health care provider's health care functions and does not
 35 extend to other causes of action.

36 (b) "Health care provider", for purposes of IC 16-35, has the
 37 meaning set forth in subsection (a). However, for purposes of IC 16-35,
 38 the term also includes a health facility (as defined in section 167 of this
 39 chapter).

40 (c) "Health care provider", for purposes of IC 16-32-5, IC 16-36-5,
 41 IC 16-36-6, and IC 16-41-10 means an individual licensed or
 42 authorized by this state to provide health care or professional services



as:

- (1) a licensed physician;
- (2) a registered nurse;
- (3) a licensed practical nurse;
- (4) an advanced practice registered nurse;
- (5) a certified nurse midwife;
- (6) a paramedic;
- (7) an emergency medical technician;
- (8) an advanced emergency medical technician;
- (9) an emergency medical responder, as defined by section 109.8 of this chapter;
- (10) a licensed dentist;
- (11) a home health aide, as defined by section 174 of this chapter;
- or
- (12) a licensed physician assistant.

The term includes an individual who is an employee or agent of a health care provider acting in the course and scope of the individual's employment.

(d) "Health care provider", for purposes of IC 16-36-7, has the meaning set forth in IC 16-36-7-12.

(e) "Health care provider", for purposes of IC 16-40-4, means any of the following:

- (1) An individual, a partnership, a corporation, a professional corporation, a facility, or an institution licensed or authorized by the state to provide health care or professional services as a licensed physician, a psychiatric hospital, a hospital, a health facility, an emergency ambulance service (IC 16-31-3), an ambulatory outpatient surgical center, a dentist, an optometrist, a pharmacist, a podiatrist, a chiropractor, a psychologist, or a person who is an officer, employee, or agent of the individual, partnership, corporation, professional corporation, facility, or institution acting in the course and scope of the person's employment.
- (2) A blood bank, laboratory, community mental health center, community intellectual disability center, community health center, or migrant health center.
- (3) A home health agency (as defined in IC 16-27-1-2).
- (4) A health maintenance organization (as defined in IC 27-13-1-19).
- (5) A health care organization whose members, shareholders, or partners are health care providers under subdivision (1).
- (6) A corporation, partnership, or professional corporation not



otherwise specified in this subsection that:

(A) provides health care as one (1) of the corporation's, partnership's, or professional corporation's functions;

(B) is organized or registered under state law; and

(C) is determined to be eligible for coverage as a health care provider under IC 34-18 for the corporation's, partnership's, or professional corporation's health care function.

(7) A person that is designated to maintain the records of a person described in subdivisions (1) through (6).

(f) "Health care provider", for purposes of IC 16-45-4, has the meaning set forth in 47 CFR 54.601(a).

SECTION 4. IC 16-18-2-194.9 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 194.9. "IVAERS", for purposes of IC 16-38-7.5, has the meaning set forth in IC 16-38-7.5-3.**

SECTION 5. IC 16-38-7.5 IS ADDED TO THE INDIANA CODE AS A **NEW** CHAPTER TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]:

Chapter 7.5. Indiana Vaccination Adverse Event Reporting System

Sec. 1. As used in this chapter, "adverse event" means any of the following occurring after the administration of a childhood vaccine:

(1) An event that is a reportable event for purposes of the administration of the federal vaccination adverse event reporting system as published by the United States Department of Health and Human Services in the Table of Reportable Events in effect on January 1, 2022.

(2) A diagnosis that a child receiving the childhood vaccine has autism spectrum disorder.

(3) Any other reaction or injury that a health care provider determines is proximately caused by the administration of the childhood vaccine.

Sec. 2. As used in this chapter, "childhood vaccine" means an immunization described in IC 20-34-4-2(a).

Sec. 3. As used in this chapter, "IVAERS" refers to the Indiana vaccination adverse event reporting system established under section 4 of this chapter.

Sec. 4. The state department shall develop the Indiana vaccination adverse event reporting system. IVAERS must enable a health care provider to report the occurrence of an adverse event experienced by a child residing in Indiana who is under the care of



1 the health care provider.

2 **Sec. 5.** A health care provider shall, in the form and manner
3 required by the rules adopted by the state department, report to
4 the state department through IVAERS the occurrence of an
5 adverse event experienced by a child residing in Indiana who is
6 under the care of the health care provider.

7 **Sec. 6.** The state department shall do the following:

8 (1) Create a searchable Internet data base for publishing
9 information reported through IVAERS under section 5 of this
10 chapter after removing any personal identifying information
11 of a child who experiences an adverse event.

12 (2) Provide continuing twenty-four (24) hour a day online
13 access to the data base.

14 (3) Secure the information collected under section 5 of this
15 chapter and the data base maintained under this chapter
16 against access by unauthorized persons.

17 **Sec. 7.** (a) Health information reported by a health care
18 provider through IVAERS is confidential.

19 (b) The state department may release information received
20 through IVAERS relating to a particular individual to the
21 individual or to the individual's parent or guardian if the
22 individual is less than eighteen (18) years of age.

23 (c) With the consent of the individual or of the individual's
24 parent or guardian if the individual is less than eighteen (18) years
25 of age, the state department may release information received
26 through IVAERS relating to a particular individual to a health
27 care provider.

28 (d) A person who knowingly, intentionally, or recklessly
29 discloses confidential information received through IVAERS in
30 violation of this chapter commits a Class A misdemeanor.

31 **Sec. 8.** The state department shall adopt rules under IC 4-22-2
32 to implement this chapter, including rules concerning the
33 following:

34 (1) The form and manner in which a health care provider
35 must submit information to IVAERS.

36 (2) Protecting the privacy and personal identifying
37 information of children who experience adverse events.

38 (3) The form and manner of publishing information relating
39 to adverse events without breaching the confidentiality of the
40 health information of particular individuals.

41 (4) The design of the data base required under section 6 of this
42 chapter.



1 **Sec. 9. Money is annually appropriated to the state department**
2 **from the state general fund in an amount sufficient to establish and**
3 **maintain IVAERS established under section 4 of this chapter.**

4 SECTION 6. IC 35-52-16-33.5 IS ADDED TO THE INDIANA
5 CODE AS A NEW SECTION TO READ AS FOLLOWS
6 [EFFECTIVE JULY 1, 2026]: **Sec. 33.5. IC 16-38-7.5-7 defines a**
7 **crime concerning the release of confidential information**
8 **maintained in the Indiana vaccination adverse event reporting**
9 **system.**

